Operator Prep Memo — Counsel Meeting 2026-04-20

For: Dean Maurice Ellis (not for counsel) **Purpose:** Recommendations, concerns, and research pointers that are NOT in the counsel packet. Read this before the meeting.

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0. What to do in the ~14 hours between now and the meeting

- [ ] **Preview both PDFs** — make sure Tier 1 opens cleanly in Adobe Reader / macOS Preview / your target reader. Test the bookmark panel and click a few internal links.
- [ ] **Print Tier 1 in hardcopy** (optional, but some lawyers work better with paper). Landscape-friendly tables; print duplex on US Letter.
- [ ] **Do not email Tier 2 yet** — it's ready but gated. Bring it on your laptop, ready to email after NDA execution.
- [ ] **Preview the Webex demo flow** — if the demo is before or after counsel, the two are different audiences.
- [ ] **Write down five questions you would ask a new lawyer** — budget, engagement scope, retainer structure, conflict check, typical timeline.
- [ ] **Confirm the counsel's background** — pure corporate (entity formation) vs. IP-specialized (patent practice). If pure corporate, you will need an IP-specialized counsel separately. See §5 below.

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1. Gaps I noticed (things the existing lawyer packet didn't cover)

1.1 AI-image copyright is legally evolving — and it matters to your IP register

The V1 splash illustrations, welcome-card icons, and Find-menu tile illustrations are generated by Stable Diffusion (DreamShaper XL Turbo) locally. The legal landscape on AI-generated imagery changed in 2023–2024:

- **Thaler v. Perlmutter** (D.D.C. Aug 2023): AI-only-generated works are not copyrightable under the Copyright Act. Human authorship is required.
- **US Copyright Office guidance** (March 2023, Aug 2023, Sept 2023): human-authored portions of mixed AI/human works may be registered, but the AI-only portions are unprotected. Applicants must disclose AI use.
- **Practical impact on V1:** your **artistic direction** (prompt engineering, selection among variants, post-processing, placement in layout) is the human-authored contribution. That's what's copyrightable. The raw Stable Diffusion output alone is not.

What counsel should confirm: the Form TX copyright registration should claim your **selection and arrangement** of the AI outputs, not the AI outputs themselves. This is the difference between a registrable work and a rejected application. This is a specific drafting concern, not a dealbreaker.

1.2 Store listing marketing copy can accidentally trigger COPPA

V1 is rated Teen + targets 13+ + collects nothing — you're clean on COPPA. But COPPA also triggers on apps that are *perceived* to target children, not just *declared* to.

- **Avoid in store listing:** "family fun," "great for kids," "fun for the whole family," "perfect for Halloween with the kids," "kid-friendly."
- **Safe framing:** "for adults and teens 13+," "history buffs," "walking tourists," "atmospheric guided experience."
- The short description (80 chars) is the part most at risk — easy to reach for child-friendly language to expand audience.

This is a 5-minute audit before final submission, not a blocker.

1.3 California Age-Appropriate Design Code (AADC, AB 2273)

Currently enjoined by a federal court, but the injunction is under appeal. Even if permanently blocked, **several other US states have introduced similar laws** (Maryland, New York, Connecticut).

- V1 doesn't collect data — so the substantive obligations of AADC are mostly moot.
- But AADC's **"likely to be accessed by children" standard is broader than COPPA.** A Teen-rated Salem-tour app that contains gentle, family-friendly marketing copy might fall under this standard.
- **Counsel should flag:** this is a watch-item for 2026–2027, not a V1 blocker. Ask counsel what her read is and whether she monitors the AADC landscape.

1.4 "Salem 400+" is a branded event — don't imply affiliation

The City of Salem and Destination Salem (the DMO) are promoting "Salem 400+" as the quadricentennial. A trademark search on "Salem 400" and "Salem 400+" is prudent before store listing copy uses it.

- **Safe store-listing framing:** "Perfect for visiting Salem during the 2026 quadricentennial celebration" (no "+").
- **Potentially risky:** "The official Salem 400+ walking tour," "Salem 400+ companion app," "Salem 400+ ready."
- **Definitely infringing:** any use of a Destination Salem logo or trade dress.

Counsel should verify Destination Salem's trademark portfolio at Monday's meeting.

1.5 OpenStreetMap attribution is NOT optional and NOT only for the store listing

ODbL requires attribution in every context the map tile data is shown. Practical implementation:

- Store listing description — "Map data © OpenStreetMap contributors" in a prominent position.
- In-app attribution screen — Settings or About, one tap away from the map view.
- On the map view itself (optional but recommended) — small credit line in a corner.

Current V1 code status: verify that the in-app attribution screen exists and is navigable from the main map. If it doesn't, add it before the first AAB build.

1.6 Domain name `destructiveaigurus.com` trademark posture

"Destructive AI Gurus" has an edgy brand feel but:

- **Trademark cleanness:** neither "destructive AI" nor "AI gurus" has an obvious TESS blocker, but counsel should run the search.
- **Google Play ranking:** the word "destructive" may flag the domain for Play Store policy review if used prominently. "Destructive" applied to software has specific connotations (malware) that algorithmic content classifiers can mis-cluster.

- **Recommendation:** ask counsel whether the Privacy Policy / ToS hosting under DAG is acceptable or whether a neutral domain (e.g., `katrinasmysticguide.com`) is cleaner.

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2. Timing-sensitive items

2.1 US Copyright registration has a 3-month "unlocks statutory damages" window

17 U.S.C. § 412: registration must be (a) before infringement, OR (b) within 3 months of first publication, to unlock statutory damages + attorney's fees on infringement.

- First publication = date of Play Store listing going live.
- If V1 ships 2026-09-01 and you register 2026-09-30, you're inside the window.
- **If you register at 2026-04-30 (soon after Monday's meeting)**, you're protected for any infringement from day one.
- **If you slip to 2026-12-15**, you're outside the window for the first 3 months of public distribution.

Recommendation: file Form TX within 30 days of Monday's meeting. $65. This is unrelated to the C-corp formation; you can file as a sole proprietor and later assign to the C-corp.

2.2 Trademark — first-to-use vs. first-to-file

US trademark law is primarily first-to-use, so your public use history (development blog posts, social media, prior app versions on GitHub public repos) matters.

Question to bring to Monday: how much of the "Katrina's Mystic Visitors Guide" name has already been publicly used? Prior use as early as Session 142 (2026-04-17) is a documented date. If the name was ONLY used internally in CLAUDE.md / SESSION-LOG.md, it's not "public use" and the filing date is the priority.

2.3 Patent provisionals — 12-month on-sale bar

Under 35 U.S.C. § 102(b), a provisional patent must be filed within 12 months of either (a) public disclosure, or (b) commercial offer for sale. If the app ships 2026-09-01 and you don't file provisionals by 2027-09-01, you lose US rights.

- Foreign rights are lost at the **first** public disclosure, with no grace period. So if you demo the app to a non-NDA audience before filing, EU / UK / CN / JP rights are gone.
- **The Webex demo tomorrow is an IP hygiene event.** If the audience is not bound by NDA, and if the demo shows algorithmic behavior (not just UI), the 12-month US clock may start.

Recommendation: if the Webex demo has any chance of being "public," treat it as such and file provisional patents within 12 months at the latest. Counsel can advise on the filing priority order once they've read T2-01 post-NDA.

2.4 Google Play closed-testing 20-tester / 14-day rule

New Google Play developer accounts (registered after mid-2023) must run **20 testers on a closed testing track for 14 consecutive days** before the production release is allowed.

- If your C-corp registers a fresh developer account in June 2026, the clock starts then.
- You need 20 testers committed by early August 2026 to hit the 2026-09-01 ship.
- **Start recruiting now.** Friends, family, beta-tester groups, Android tester Discord communities, Reddit r/AndroidBeta.

3. Webex demo intersection (also Monday 2026-04-20)

Assuming the Webex demo is a separate meeting from the counsel meeting:

3.1 IP hygiene for the demo

- **If the audience is an investor or potential partner**: they should sign an NDA before the demo. A one-page short-form NDA is sufficient — the full mutual NDA in Tier 1 §B2 is the template; a single-party-protects-DME variant would be shorter.
- **If the audience is an end-customer preview**: less critical for IP, but be mindful of public-disclosure posture. Don't show admin-tool internals, don't show SalemIntelligence data architecture, don't screen-share server-side algorithm discussions.
- **Make a timestamped record of the demo:** a screen recording + attendee list is good evidence for "first public disclosure" date purposes if patent disputes arise.

3.2 Content boundaries

Topics that are **safe** to discuss in any demo:

- The app exists, what it does (walking tour of Salem), pricing, target market, Salem 400+ timing.
- Screens and UI flow.
- Feature names at the marketing level (Take-a-Tour, Witch Trials, Find Menu).

Topics to **keep off-camera** until NDAs are in place:

- Specific algorithm names (Adaptive Radius, Probe-Calibrate-Spiral, JTS R-Tree, etc.).
- Data pipeline and cross-project architecture.
- Tier architecture for V2.
- Financial projections.
- Any mention of the 14 patentable innovations as a set.

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4. Questions to ask counsel on Monday

In priority order — you only get a finite amount of counsel's attention on day one.

1. **"What is your engagement scope for a startup at this stage, and what's your fee structure?"** — sets the bar.
2. **"Do you handle patent prosecution internally, or do you refer it out?"** — this is the split that decides whether you need a second lawyer.
3. **"Given Delaware vs. Massachusetts and a single-founder consumer-app C-corp, what's your recommendation and why?"** — specific and actionable.
4. **"Can you sign a mutual NDA today so I can share my IP register?"** — the unlock for Tier 2.
5. **"Can we schedule a 90-minute working session within 2 weeks, specifically on IP strategy?"** — blocks their calendar for the patent-strategy deep-dive.
6. **"What's your read on AI-generated imagery and Form TX?"** — tests whether counsel is up to date on post-Thaler copyright.
7. **"Do you see any state-law paid-app registration exposures I should be aware of?"** — one catch-

all question.

8. **"Who on your team handles ongoing post-launch legal issues — content takedowns, user disputes, DMCA?"** — post-launch retention planning.

4.1 Red flags to watch for in counsel

- If counsel pushes back hard on signing an NDA before Tier 2, that's a signal they're **not the right lawyer** for an IP-first startup. Move on.
- If counsel can't answer the AI-imagery question coherently, they may not be a current-IP-landscape lawyer. Fine for entity formation, not fine for patent strategy.
- If the fee quote is "we'll figure it out" or an open-ended retainer without scope, push for either a flat-fee engagement or a capped-hourly with monthly reports.

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5. You may need two lawyers, not one

A single lawyer rarely covers:

- Entity formation + corporate governance
- Employment / founder equity
- IP portfolio strategy + patent prosecution
- Commercial contracts (hosting, vendor, OEM)
- Regulatory / state-law compliance

Depending on the counsel you're meeting, consider the split:

- **If Monday counsel is corporate-specialty:** hire them for entity + policy + ToS + trademark. Refer patent prosecution to an IP firm. $200–400/hr corporate + $300–500/hr patent is a common split.
- **If Monday counsel is an IP specialist:** hire them for patent strategy + trademark + copyright. They may refer entity formation to a cheaper corporate lawyer or an online service (Stripe Atlas, Clerky) at $500–1000 flat.
- **If Monday counsel is a general small-business lawyer:** they can probably handle V1 scope but may be below the patent-prosecution bar. Plan for a second patent-specialty lawyer post-NDA if so.

Either way, set expectations early. A typical early-stage software founder engages one corporate lawyer and one patent lawyer, and the combined budget is $5,000–$15,000 for the first 6 months. Budget lower only if counsel agrees to a limited scope.

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6. After the meeting — checklist

Immediately after the meeting:

- [ ] Confirm the engagement letter scope in writing (email back counsel's first draft with any edits).
- [ ] If NDA was signed, **email the Tier 2 PDF tonight** from the laptop you were using in the meeting. Subject line: *"Tier 2 — per NDA executed today."* One-line body.
- [ ] Make notes in the session log about what was decided, who committed to what, and what the next deadlines are.

- [ ] Calendar: counsel's next-checkpoint date, any filing deadlines (copyright, trademark).
- [ ] Start the action items on the critical path: EIN application (once entity formed), bank account, D-U-N-S number if not already.

Within the week:

- [ ] File Form TX copyright registration (~$65, 1 hour of your time).
- [ ] Run your own TESS search as a sanity check on anything counsel finds.
- [ ] Begin recruiting the 20 Play Store closed-testing tester list.
- [ ] Review counsel's engagement letter and sign it.
- [ ] If counsel recommends an IP firm referral, email them and request an intro meeting.

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7. Open risks not captured elsewhere

1. **Dean's personal information in the V1 Privacy Policy / ToS.** Until the C-corp forms, the policies reference operator personal name and potentially home address. Consider using a PO Box ($50–100/yr) for mailing address from day one; the policies will be public forever.
2. **What if counsel recommends renaming the app?** Plan for this. The codebase has ~300 references to "Katrina's Mystic Visitors Guide" and "wickedsalemwitchcitytour" — rebuild effort is a few hours of find-and-replace + re-baking asset bundles.
3. **What if counsel recommends NOT shipping on 2026-09-01?** The Salem 400+ commercial window is Sept-Oct 2026. If counsel pushes for 2026-11-01 to accommodate IP filings first, the commercial upside of October traffic is lost. You may have to choose: patent priority vs. revenue window. Make the decision consciously, not by default.
4. **What if the C-corp paperwork slips past June?** Pre-built fallback in Tier 1 §3.4 — ship as sole prop, transfer later. Test that Google Play actually allows the transfer at your expected volume.
5. **What if a competing Salem app ships first?** The Salem walking-tour market is small but not empty. Sanity-check: is there a competing app with better distribution that launches in September? Search Play Store for "Salem tour," "Salem walking," "Witch City" and see what exists.
6. **Payout timing.** Google pays out monthly to the merchant bank account. If the C-corp bank account isn't fully active by first-sale date, payouts accumulate at Google. Not a blocker but a cash-flow note.

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8. TL;DR

- **Deliver Tier 1 PDF to counsel on Monday.** It's ready at `docs/counsel-packet/Katrina-Counsel-Packet-Tier1-Pre-NDA.pdf`.
- **Do NOT deliver Tier 2 until NDA or engagement letter with confidentiality is signed.** Tier 2 PDF is ready at `docs/counsel-packet/Katrina-Counsel-Packet-Tier2-Post-NDA.pdf` — hold it.
- **If the Monday counsel is the right counsel, get the NDA signed in the meeting.** Email Tier 2 that same evening.
- **File Form TX copyright within 30 days.** Unrelated to C-corp formation.
- **Expect a second lawyer for patents.** Budget accordingly.
- **Audit store listing copy for accidental child-audience framing** before submission.

- **Recruit 20 closed-testing users now** — that's the hidden 14-day Play Store blocker.
- **Don't show algorithmic behavior in non-NDA demos.** UI is safe.

Last updated: 2026-04-19 (S151, pre-counsel-meeting).